ComEd. Energy Efficiency Program | Nicor Gas Energy Efficiency Program | PEOPLES GAS ENERGY EFFICIENCY PROGRAM | NORTH SHORE GAS ENERGY EFFICIENCY PROGRAM

Home Energy Savings Program

Customer Authorization Form

Commonwealth Edison Company ("**ComEd**"), Nicor Gas, North Shore Gas, and Peoples Gas (collectively, the "**Utilities**") are jointly funding the Home Energy Savings offering ("**Offering**") for eligible residential customers to facilitate the identification and implementation of energy efficiency improvements available at their homes. As a customer of at least one of the Utilities, you may be eligible to receive comprehensive home improvements at no charge that will help you save energy and money on your monthly energy bills. This Customer Authorization Form sets forth the terms and conditions applicable to customers participating in the Offering.

By signing below, I certify that:

1. I am an account holder with one of the Utilities at the property address listed below and that I have the authority to accept the Offering Terms and Conditions outlined in this Customer Authorization form;
2. I have read, understand, and agree to comply with the Offering Terms and Conditions; and
3. If signing by electronic signature, I agree that my electronic signature is the legal equivalent of my handwritten signature.

Customer Signature	
Customer representative signature	
Customer representative printed name	
Date	
Property address	

Offering Terms and Conditions

Offering Year: The Offering Year is from January 1st through December 31st. Eligible projects are accepted on a first-come, first-served basis until the conclusion of the Offering Year, or until Offering funds are exhausted, whichever comes first.

Implementing Contractor : The Utilities have contracted and authorized Resource Innovations, LLC ("**Implementing Contractor** ") to administer the Offering including such activities, but not limited to; review, processing, and approval of customer projects; pre and post inspections of customer premises; to facilitate project information requests from customers and Installation Contractors; and measurement and verification activities.

Installation Contractor: As a convenience to customers, the Offering has identified contractors, service providers, and other organizations who are approved to assist customers participating in the Offering ("**Installation Contractors** "). For this program, Customer will be required to engage an Installation Contractor approved by the Offering to qualify for incentives through the Offering. Customer acknowledges that the Utilities, Implementing Contractor, and the Installation Contractor are independent contractors with respect to the Offering, and that Installation Contractors are not authorized to make representations or incur obligations on behalf of the Utilities or Implementing Contractor. Participation as an Installation Contractor does not constitute an endorsement by the Utilities or Implementing Contractor, nor does it certify or guarantee the quality of work performed.

Eligibility: To be eligible for the Offering, Customer must: be an account holder with one of the Utilities; live in a single-family home (up to two units); and have an annual household income of less than 80% of Area Median Income.

Tenants: If a tenant, Customer is responsible for obtaining the property owner's permission to participate in the Offering by submitting a completed Property Owner Authorization and Agreement Form signed by the property owner. Customer's signature on this Customer Authorization Form indicates that Customer has obtained such permission.

Offering Participation Steps: An Installation Contractor will meet with Customer to conduct an assessment of Customer's home to identify opportunities that Customer may qualify for through the Offering. The Installation Contractor will obtain Customer permission to proceed with the installation of qualified measures.

Project Payment: The Offering provides incentives for the installation of eligible measures. Payment of the incentive amount is issued directly to Customer's Installation Contractor. Eligible equipment receiving incentives under the Offering are not eligible for purchase and installation incentives or credits under any other Utility Offerings.

Right to Inspect/Access : The Utilities reserve the right to conduct post-installation inspections of all improvements to verify compliance with Offering requirements and/or to perform participant interviews. For a period of one year after the date of installation, and upon reasonable notice by the Utilities, Customer agrees to allow access to project documents and the installed improvements. Customer may be contacted by an evaluator to complete a customer survey.

Customer Information: Customer authorizes and acknowledges that the Utilities may duplicate, disseminate, release and disclose Customer's information relating to a Customer application (including the entirety of its contents), and any other information related to the Customer's participation in the Offering, including but not limited to customer contact information, account information and billing data, energy usage, and tax identification numbers to Implementing Contractor and Installation Contractors, as applicable, and any other third party utilized by the Utilities for the purpose of providing Offering services, reviewing and processing the Customer Application, to confirm eligibility for participation in the Offering, to verify equipment installation or service implementation, operation and results, to issue payment on behalf of the Offering, to monitor compliance with Offering requirements and terms; or as required to comply with state and/or federal law, fraud prevention, regulation, and other legal action; in those cases, Utility and its service providers shall comply with all legal requirements of the jurisdiction of the individual whose Customer data would be disclosed before making such disclosure.

PJM Capacity Credits: Customer will be entitled to the energy cost savings realized by Customer that result from the installation of Energy Conservation Measures ("**ECMs**") at Customer's home. In consideration of the services provided as part of this Offering, Customer agrees that the Utilities are entitled to 100% of the rights and benefits associated with the measures, including without limitation PJM products and all other attributes, credits or products associated therewith under any regional initiative or federal, state or local law, Offering or regulation, and Customer waives, and agrees not to seek, any right to the same.

Project Installations: Customer acknowledges that while the Offering may provide energy assessments and identification of energy efficiency opportunities available at the Customer's home, neither the Utilities nor Implementing Contractor will install or implement such equipment or measures. Installation of and implementation of any qualifying equipment or measures will be carried out by the Installation Contractor working with Customer. The Utilities and Implementing Contractor assume no responsibility for oversight of contractor services, or for any claims the Customer might have against the manufacturer, the retailer or the Installation Contractor regarding services or measures implemented under the Offering.

Toxic Materials: Neither the Utilities nor its Implementing Contractor shall have any responsibility for the discovery, presence, handling, removal, disposal of, or exposure to hazardous materials of any kind in connection with customer's facility, including without limitation, asbestos, asbestos products, PCBs or any other toxic substances.

Disclaimer of Warranties : Customer shall independently evaluate any information provided by the Utilities, Implementing Contractor, or an Installation Contractor related to estimates of energy savings or costs for the selection of equipment or measures to be installed or implemented. THE UTILITIES AND IMPLEMENTING CONTRACTOR DO NOT MAKE ANY WARRANTIES OR REPRESENTATIONS OF ANY KIND WITH RESPECT TO THE DESIGN, MANUFACTURE, CONSTRUCTION, SAFETY, OPERATION, PERFORMANCE, INSTALLATION, EFFECTIVENESS OR ANY POTENTIAL ENERGY OR COST SAVINGS OF EQUIPMENT INSTALLED, MEASURES IMPLEMENTED, AND/OR SERVICES RENDERED BY ANY PERSON OR ENTITY IN CONNECTION WITH THE OFFERING. THE UTILITIES AND IMPLEMENTING CONTRACTOR DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, TO THE MAXIMUM EXTENT PERMITTED UNDER LAW, WHETHER STATUTORY OR OTHERWISE, INCLUDING WITHOUT LIMITATION ANY WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, USE, ENERGY SAVINGS, AND NON-INFRINGEMENT.

Fraud: Any person who knowingly files an application containing any materially false information or who purposely or misleadingly conceals information subjects such person to criminal and civil penalties. Any and all funds determined to have been acquired on the basis of inaccurate or fraudulent information must be returned to the Utilities. Any customer found to be engaged in fraudulent activity or misrepresentation of any kind will be removed from the Offering. This section shall not limit other remedies that may be available for the filing of a false or fraudulent application, including, but not limited to, referral to law enforcement authorities.

Indemnification: Customer shall defend, indemnify and hold harmless the Utilities, Implementing Contractor and their respective affiliates, officers, directors, shareholders, agents, employees, contractors, and representatives (the "**Indemnified Parties** ") from and against any and all liability, claims, losses, damages, demands, judgments, causes of action, suits, costs (including reasonable attorney's fees and expenses) and liability of every kind and character whatsoever ("**Claims**") arising out of or related in any way to, directly or indirectly, Customer's participation in the Offering or its failure to comply with any of its obligations hereunder; provided however, that Customer shall not be required to indemnify and hold harmless any Indemnified Party against Claims adjudicated to have been caused by an Indemnified Party's negligence or willful misconduct.

Limitation of Liability: The Utilities and Implementing Contractor' total liability, regardless of the number of claims, is limited to the amount of the incentive payment approved in accordance with Offering requirements. To the fullest extent allowed by law, the Utilities and Implementing Contractor shall not be liable hereunder for any type of damages, whether indirect, incidental, consequential, exemplary, reliance, punitive or special damages, including, without limitation, loss of use or loss of profits, regardless of the form of action, whether in contract, indemnity, warranty, strict liability or tort, including negligence of any kind.

Governing Law: Participation in this Offering will be exclusively governed by and interpreted in accordance with the laws of the State of Illinois. Any litigation brought against the Utilities by or on behalf of Customer shall be prosecuted only in the state or federal courts located in Cook County, Illinois.